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INDIVIDUAL ASSIGNMENT

NAME: NGUYEN THI PHUONG MAI

STUDENT ID: HS180947

CLASS: IB1817

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INSTRUCTOR: CUNG THI ANH NGOC

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Question 1. In your opinion, what are the positive and negative impacts of tariffs on Vietnam's economic activities? Please provide examples to support your analysis.

1. Positive impacts

In the context of international economic integration and free trade today, countries are increasingly participating in international commodity systems. Besides that, tariffs are taxes applied to exported and imported goods when they cross borders, making them a particularly important trade policy tool for countries. Tariffs are applied not only to regulate international trade and generate revenue for the state budget, but also indirectly affect production, consumption, employment, and economic growth. Especially for Vietnam – an open economy heavily reliant on exports and FDI – understanding the impact of tariffs on the economy is crucial for formulating the most appropriate policies.

First, tariffs help protect domestic industries. Import taxes directly impact the prices of foreign goods entering the domestic market. When an imported product is taxed, its selling price will inevitably increase significantly compared to its original price in the exporting country, and may even be higher than similar goods produced domestically. This makes foreign goods more expensive and reduces their competitive advantage over domestic products. Furthermore, import taxes create a favorable environment for domestic businesses, especially those with limited capital, technology, and production capacity. In today's free competition, goods from developed countries are often of higher quality and lower cost due to large-scale production. Without the intervention and impact of tariffs, domestic businesses could lose market share or even go bankrupt competing with foreign goods. Therefore, import taxes play a crucial role as an initial protective barrier, creating opportunities for domestic businesses to accumulate capacity and enhance their competitiveness.

A prime example in Vietnam is the automotive industry, where import tax policies have played a significant role in promoting domestic production. For many years, Vietnam has applied special tax and incentive policies for domestically produced and assembled automobiles to support businesses like VinFast and THACO in developing localization and expanding production. According to Government Decree No. 21/2025/ND-CP, which amends and supplements Article 9 of Decree 26/2023/ND-CP, Vietnam has expanded the application of a 0% preferential import tax to imported automotive components used in domestic production and assembly. This gives domestic automakers a cost advantage over importing fully assembled vehicles, which incur higher taxes and greater costs when entering the Vietnamese market. If the market were completely open to cheap imported cars from countries like Japan, South Korea, or Thailand, the domestic automotive industry would find it very difficult to survive.

Secondly, one of the biggest benefits of tariffs to the economy is their direct contribution to state budget revenue. Therefore, import duties, a major component of tariffs, generate financial revenue from international trade activities when foreign goods are imported into the country. Especially in an open economy like Vietnam, where import and export activities

account for a very large proportion of GDP, revenue from import and export taxes is a crucial financial resource for the government to carry out public spending tasks such as infrastructure development, healthcare, education, and social welfare.

According to Vietnam News, in 2025, tariffs will continue to play a significant role in increasing state budget revenue in Vietnam. According to the Customs agency's report, revenue from import and export activities in November reached VND 420.63 trillion, exceeding the plan by 102.3% and increasing by 9% compared to the same period last year. Simultaneously, in the first 10 months of 2025, this figure reached approximately VND 379.8 trillion, equivalent to over USD 14.4 billion, an increase of 9.3% compared to the same period and nearly 92.4% of the annual plan. This result shows that it provides the Vietnamese Government with additional financial resources to invest in socio-economic development goals such as strategic infrastructure (highways, seaports, bridges, etc.), improving the quality of healthcare and education services, and strengthening social security. Therefore, we can see that tariffs have played a significant role in fiscal policy, helping the country balance its policies and promote sustainable growth.

Furthermore, tariffs are not only a tool to protect domestic production or contribute to state budget revenue, but also a crucial "negotiating weapon" for expanding export markets for domestic goods. Through trade negotiations, Vietnam can use tariff pressure to persuade foreign partners to reduce trade barriers, open their markets to export products, and simultaneously promote deeper integration into the international trade network. When a country wants to boost exports to a new key market but faces tariff or non-tariff barriers, proposing tariff reductions through bilateral or multilateral trade negotiations is an effective economic strategy. Tariffs here are used as leverage to gain commitments to open markets.

A prime example of the strategic negotiating role related to tariffs is the trade agreement between Vietnam and the United States in the summer of 2025. After numerous rounds of negotiations on tariffs and trade barriers, the two sides reached an agreement to adjust tariffs on Vietnamese exports to the US market. In this agreement, the US accepted a 20% import tariff on Vietnamese goods instead of the previously higher 46%. Simultaneously, both sides committed to continuing work to resolve tariff and non-tariff issues within the framework of bilateral trade, demonstrating the role of using tariffs as a strategic negotiating tool to open markets and boost exports.

2. Negative impacts

Besides the clear benefits that tariffs bring to the Vietnamese economy, there are also significant negative impacts. One of the most obvious negative impacts is that tariffs reduce the competitiveness of Vietnamese export goods in the international market. When importing countries impose high tariffs, the price of Vietnamese products in foreign markets also increases, making products more expensive and less competitive compared to goods from the importing country and countries with lower tariffs. This will lead to fewer orders, a shrinking market share, and a direct impact on export turnover.

A clear example of this is the US tariff policy on goods exported from Vietnam, as mentioned above. From 2025, when the US imposes a 20% tariff on Vietnamese goods, it will significantly impact many of Vietnam's key manufacturing sectors such as textiles, footwear, wood products, and seafood. These sectors employ millions of workers domestically and contribute significantly to the country's total import and export turnover. Furthermore, the US is one of Vietnam's largest export markets, so high tariffs will put considerable pressure on trade growth and domestic production.

Furthermore, tariffs not only affect import-export businesses but also directly impact consumers and a country's macroeconomic indicators. This is because the price of imported goods increases, and these tax costs are often passed on to consumers in the form of higher selling prices compared to the price before the tax, directly affecting people's purchasing power and living standards. In addition, studies have shown that when import taxes increase the value of goods, they also push up overall consumer costs, leading to consumer price inflation. When businesses' input costs increase due to taxes, they often have to raise product prices to compensate, thus driving up the overall price level. This puts pressure on consumers and can reduce people's purchasing power over time. This impact affects exchange rate fluctuations and the balance of payments. When tariffs lead to reduced exports or adjustments in the flow of goods, the international flow of capital into and out of the economy can also change. Therefore, although tariffs benefit domestic production, in the long run they can also cause macroeconomic instability if not carefully considered in the overall tax policy.

An example to illustrate this point is Vietnam's imported petroleum products. Petroleum is an essential input for the entire economy, from transportation and industrial production to consumer goods. When import taxes and environmental protection taxes increase, domestic gasoline prices will also rise sharply. When gasoline prices increase, transportation and production costs will also increase, leading to inflation. Furthermore, the fact that the General Statistics Office of Vietnam has repeatedly emphasized that when gasoline and oil prices rise, it is one of the direct causes of the increase in the CPI and puts pressure on macroeconomic stability.

From the above analysis, it can be seen that tariffs bring both benefits and disadvantages to the Vietnamese economy. While they can protect domestic production, increase state budget revenue, and support trade strategies, they also put pressure on exports, reduce competitiveness, and negatively impact the country's economic growth if not adjusted appropriately. Therefore, understanding these impacts, especially in the context of trade globalization, will help Vietnam develop more flexible and sustainable economic development strategies and minimize unnecessary risks.

Question 2.2a. Define, classify, and analyze the role of Certificates of Origin (for import-export companies and customs authorities) in customs procedures.

1. Definition of a certificate of origin in customs procedures.

A Certificate of Origin (C/O) is one of the essential documents for exporting goods to other countries. It is issued or certified by competent authorities/organizations to identify the origin of goods and ensure they are produced and distributed in accordance with the regulations of the country of origin.

A C/O is a crucial document in international trade, enabling imported products to be processed quickly through customs procedures such as customs clearance, tax determination, or import condition integration. Therefore, a C/O is not just a piece of paper accompanying a shipment, but also legal evidence for customs authorities and other state management agencies to apply origin-based policies.

2. Classification of Certificates of Origin

In international trade, the Certificate of Origin (C/O) is not just a single form of documentation but is classified based on various criteria. This classification helps businesses and customs authorities accurately determine whether goods qualify for preferential tariffs, whether they fall under the scope of any specific agreement, or what the certification mechanism and level of origin verification entail. Therefore, the classification of C/Os plays a crucial role in ensuring goods can access preferential routes and minimizing the risk of origin fraud.

Certificates of Origin (C/O) are divided into two types: preferential C/O and non-preferential C/O.

Firstly, non-preferential C/Os are certificates of origin not intended for preferential tariff rates but for other management purposes such as trade statistics, quota application, import control, or the implementation of trade defense measures (anti-dumping, anti-subsidy).

Secondly, preferential C/Os are certificates of origin used as a tool to prove that goods meet the rules of origin of free trade agreements (FTAs) or special preferential programs. When a business presents a correct preferential C/O, imported goods can benefit from special preferential tariff rates, even 0%, thereby significantly reducing import costs and increasing competitiveness. The World Customs Organization (WCO) affirms that preferential certificates of origin are the basis for customs authorities to decide whether a shipment is eligible for preferential tariff rates.

Based on tariff preferences, there are 13 of the most common C/O forms, including:

STT	Form C/O	Applicable subjects
1	Form A	Exports to countries that grant Vietnam preferential tariff

		treatment under the Generalized System of Preferences (GSP)
2	Form B	Goods exported to all countries (without preferential treatment)
3	Form D	Goods exported to ASEAN countries are eligible for preferential tariffs under the CEPT agreement.
4	Form E	Goods exported from ASEAN to China are eligible for preferential tariffs under the ACFTA agreement.
5	Form EAV	Goods exported from Vietnam to countries such as Armenia, Belarus, Kazakhstan, Kyrgyzstan, and Russia are eligible for preferential tariffs under the Vietnam-Eurasian Economic Union agreement.
6	Form AK	Goods exported to or from South Korea and ASEAN countries are eligible for preferential tariffs under the ASEAN-South Korea Free Trade Agreement.
7	Form VK	Exports between Vietnam and South Korea, or vice versa, are eligible for preferential tariffs under the Free Trade Agreement between Vietnam and South Korea.
8	Form AJ	Goods exported to Japan or vice versa and to ASEAN countries are eligible for preferential tariffs under the ASEAN-Japan Free Trade Agreement.
9	Form VJ	Goods exported between Vietnam and Japan, or vice versa, are eligible for preferential tariffs under the Free Trade Agreement between Vietnam and Japan.
10	Form AI	Goods exported to India or vice versa and to ASEAN countries are eligible for preferential tariffs under the Vietnam-India Agreement.
11	Form AANZ	Exports to ASEAN countries, Australia, and New Zealand are eligible for preferential tariffs under the AANZFTA multilateral trade agreement.
12	Form VC	Exports between Vietnam and Chile, or vice versa, are eligible for preferential tariffs under the Free Trade Agreement between Vietnam and Chile.
13	Form S	Goods exported to Laos are eligible for preferential tariffs under the Vietnam-Laos agreement.

3. The role of certificates of origin

- The role for export businesses

Firstly, for exporting businesses, a Certificate of Origin (C/O) is crucial in ensuring that goods are recognized as legitimately originating in the importing market, helping exporters avoid risks related to origin fraud or accusations of illegal transportation. When businesses comply with origin regulations and prepare all necessary documents, their reputation in the international market is enhanced. Therefore, if exporters want to maintain their reputation and ensure timely delivery, they must prepare a complete C/O.

Furthermore, a C/O helps exporters reduce import taxes and improve the competitiveness of their goods in the international market. When goods are granted preferential C/O under free trade agreements, they can benefit from significantly lower import taxes, even zero percent, in the importing country. This will significantly reduce costs and create a competitive advantage for exporting businesses compared to competitors from countries without such preferential treatment.

Furthermore, Certificates of Origin (C/O) contribute to expanding export markets for businesses. Many countries and economic regions require imported goods to meet clear rules of origin to be eligible for preferential treatment or circulation. Therefore, having a valid C/O will facilitate expanding export opportunities and accessing more customer groups and international markets. Especially in the context of Vietnam's participation in a series of FTAs such as EVFTA, CPTPP, and RCEP, the C/O becomes an even more important tool for businesses to utilize to expand market share.

- Role for importing businesses

First and foremost, one of the most important roles of a Certificate of Origin (C/O) for importers is its role in securing preferential import duties. The preferential certificate of origin is the basis for customs authorities to determine the applicable tax rate on goods. This means that if an importing enterprise cannot present a valid C/O, the goods may be subject to the normal tax rate, directly impacting the selling price, increasing costs, and reducing profits. Conversely, with a valid C/O, the enterprise can benefit from a more favorable tax rate, reducing costs and thus gaining a competitive advantage in the market.

Furthermore, a C/O helps importers ensure the origin of goods, avoiding the risks of purchasing counterfeit, fake, or substandard products. In international trade, controlling the origin of products is becoming increasingly important, especially for health-related and safety-related items such as food, pharmaceuticals, and medical equipment, as they directly affect consumer health. Therefore, Certificates of Origin (C/O) play a crucial role in proving the clear origin of goods, reassuring importers about the legality, quality, and safety of the products.

Furthermore, C/O simplifies import procedures. When goods have complete and valid origin documents, customs clearance at the border is usually faster and smoother. Conversely, without a C/O, shipments may be held for inspection, verification, or subject to higher taxes, leading to delays in delivery and additional storage costs. Therefore, for importers, C/O not

only has economic value but also contributes to ensuring efficient logistics and supply chain management.

- Role for customs authorities

For customs authorities, a Certificate of Origin (C/O) is not only a document supporting customs clearance but also a crucial tool for state management and trade tariffs.

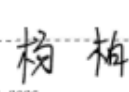
Firstly, the C/O is a legal tool that allows customs to accurately apply tax policies and trade preferences. If goods originate from a country with a free trade agreement with the importing country and meet all rules of origin, customs authorities will apply a more favorable tax rate. Conversely, if there is no valid certificate of origin, the goods will be subject to the normal tax rate. This shows that the C/O helps customs authorities ensure the correct and full collection of taxes for the state budget, while also fulfilling international trade commitments.

Furthermore, the C/O is also a tool for customs authorities to control origin fraud and combat illegal transshipment. In practice, many businesses may exploit preferential tax policies to commit fraud, falsely declare the origin of goods, or transport goods through intermediary countries to avoid taxes. Therefore, verifying Certificates of Origin (C/O) becomes a crucial step in customs risk management. Vietnamese customs law clearly stipulates that the origin of goods is one of the criteria for physical inspection, along with the commodity code, quantity, and value. This demonstrates the important role of C/O in the system of controlling trade fraud.

Furthermore, C/O contributes to increased transparency and facilitation of international trade. When customs authorities have complete and clear origin documents, the customs clearance process becomes faster, minimizing delays in the logistics chain. Simultaneously, the consistent application of rules of origin according to international standards also helps improve predictability and transparency in trade.

Question 2: 2b. Choose one type of Certificate of Origin that you mentioned in question 2a and explain its contents in detail.

Original

1. Products consigned from (Exporter's business name, address, country) NANNING SUOHANG CHEMICAL CO., LTD. NO. 22, PREPARATION WORKSHOP, 154 SHIBU ROAD, XIXIANG TANG DISTRICT, NANNING CITY, CHINA			Reference No. E26MASX2QYF800006 		
2. Products consigned to (Consignee's name, address, country) LUX COLOR COMPANY LIMITED LOT A9, QUE VO INDUSTRIAL PARK, PHUONG LIEU WARD, BAC NINH PROVINCE, VIET NAM			ASEAN-CHINA FREE TRADE AREA PREFERENTIAL TARIFF CERTIFICATE OF ORIGIN (Combined Declaration and Certificate) FORM E Issued in <u>THE PEOPLE'S REPUBLIC OF CHINA</u> (Country) See Overleaf Notes		
3. Means of transport and route (as far as known) Departure date JAN. 27, 2026 Vessel's name / Aircraft etc. CRCT0811 Port of Discharge YEN VIEN, VIET NAM FROM NANNING, CHINA TO YEN VIEN, VIET NAM BY TRAIN			4. For Official Use Verification: origin.customs.gov.cn ☐ Preferential Treatment Given ☐ Preferential Treatment Not Given (Please state reason/s) Signature of Authorised Signatory of the Importing Party		
5. Item Number	6. Marks and numbers on packages	7. Number and type of packages, description of products (including quantity where appropriate and HS number in six digit code)	8. Origin criteria (see Overleaf Notes)	9. Gross weight or net weight or other quantity, and value (FOB) only when RVC criterion is applied	10. Number, date of Invoices
1	N/M	ONE THOUSAND TWO HUNDRED (1200) BAGS OF BARIUM SULFATE XX-44HB HS CODE: 2511.10 *** **	"PE"	30000KGS N.W.	SHLUX260126318 JAN. 26, 2026
11. Declaration by the exporter The undersigned hereby declares that the above details and statement are correct; that all the products were produced in <u>CHINA</u> (Country) and that they comply with the origin requirements specified for the goods in the Rules of Origin for the ACFTA for the <u>VIET NAM</u> (Importing Country) Nanning, China, FEB. 02, 2026 Place and date, signature of authorised signatory  			12. Certification It is hereby certified on the basis of control carried out, that the declaration is true and correct.    2672000023899 Nanning, China, FEB. 02, 2026 Place and date, signature and stamp of certifying authority		

267201001026759

The certificate of origin is a C/O Form E – a preferential certificate under the ASEAN-China Free Trade Agreement (ACFTA). This document allows goods to benefit from preferential tariff rates when imported between ASEAN countries and China.

REFERENCE NO. (C/O Reference Number): E26MASX2QYF800006. This number is the unique management code of the document; it helps to look up and verify the C/O.

1. Products consigned from (Exporter's business name, address, country)

This section displays the exporter's information:

- Exporter's name: NANNING XIANGYI CHEMICAL CO., LTD.
- Full address: NO. 22, PREPARATION WORKSHOP, 154 SHIBU ROAD, XIXIANG TANG DISTRICT, NANING CITY, CHINA

This is the basis for identifying the entity primarily responsible for declaring the origin of goods. Clearly stating the exporter helps customs authorities compare it with the contract, commercial invoice, and production records to verify the validity of the origin.

2. Products consigned to (Consignee's name, address, country)

Similar to item 1, item 2 shows the importer's information:

- Name of consignee (Importer/Consignee): LUX COLOR COMPANY LIMITED
- Address: LOT A9, QUE VO INDUSTRIAL PARK, PHUONG LIEU WARD, BAC NINH PROVINCE, VIET NAM.

This information indicates who the shipment is exported to and which country is the importer. This is crucial to ensure that tariff preferences are applied correctly only within the member countries of the ACFTA agreement.

3. Means of transport and route (as far as known)

This section describes the means of transport and the shipping route:

- Departure Date: Jan. 27, 2026
- Ship/Flight Name: CRCT0811
- Port of Discharge: YEN VIEN, VIET NAM
- Shipping Route: From Nanning (China) to Vietnam by rail

In free trade agreements, the “direct transport” condition is a crucial element to prevent fraudulent transshipment through a third country. Therefore, this section helps customs authorities determine whether goods are actually transported directly from the exporting country to the importing country.

4. For Official Use

This section is for the authorities and includes two parts:

- Preferential Treatment Given
- Preferential Treatment Not Given

This is where the importing customs authority will record whether the goods are eligible for preferential treatment. If the Certificate of Origin (C/O) is valid and meets the rules of origin, the customs authority will approve the preferential treatment. Conversely, if the documents are incorrect or inconsistent, the preferential treatment will be rejected. Therefore, this section clearly demonstrates the role of customs in deciding on the application of tax policy.

5. Item number

This is the item number; if the document contains multiple items, number them 1, 2, 3,...

This document only contains Item 1.

6. Marks and numbers on packages

This section shows the markings on the packaging: packing mark, batch code. This is for the purpose of verifying the actual goods.

This Certificate of Origin (C/O) is marked N/M (No Mark), meaning there are no special markings.

7. Number and type of packages, description of goods

This section shows the number of packages and the description of the goods, including:

- Packaging type: Bags
- Number of packages: 1200
- Description of goods: Barium Sulfate XX-44HB
- HS Code: 2511.10

This is an important basis for accurately identifying the shipment for which a certificate of origin is requested, preventing the misuse of the Certificate of Origin to legitimize other goods.

8. Origin criterion (see Overleaf Notes)

This section shows the origin criteria.

In the Certificate of Origin (C/O), it is PE, and in Form E, the criteria may be:

- WO: Wholly Obtained
- CTH/CTS: HS Code Transformation
- RVC: Regional Value Content
- PE: Produced Entirely (Produced entirely in the exporting country)
- PSR: Product Specific Rules

This criterion is the core basis for import customs to determine whether goods qualify for preferential tariff treatment.

9. Gross weight or net weight other quantity, and value (FOB) only when RVC criterion is applied

Section 9 shows the total actual weight/quantity and FOB price, but it is only mandatory when the origin criterion is based on Regional Value (RVC). If other criteria are applied, the FOB price does not need to be included.

With a Certificate of Origin (C/O) where the origin criterion is PE, the FOB price does not need to be mentioned; only the Net Weight: 30,000 KGS should be included.

10. Number and date of invoices

Section 10 clearly states the invoice number and date on the Commercial invoice, linking the Certificate of Origin (C/O) to the payment and customs declaration documents, ensuring that the certificate of origin matches the declared shipment. The C/O shown is:

- Invoice number: SHILUX260126318
- Date: Jan 26, 2026

11. Declaration by the exporter

Section 11 is the exporter's declaration. The exporter commits that the declared information is accurate and that the goods fully comply with the ACFTA rules of origin, and this declaration is signed and stamped. This is a legally binding commitment, and the business may be penalized or have taxes collected retrospectively if the declaration is false.

12. Certification

Section 12 is the certification from the competent authority in the exporting country. The issuing authority will sign and affix an official red seal confirming that the goods have been inspected and meet the rules of origin. This is what gives the C/O its international legal validity, allowing the document to be recognized by the customs authorities of the importing country.

The C/O clearly states “THE PEOPLE’S REPUBLIC OF CHINA” and “NANNING CUSTOMS”, indicating that this C/O was issued by a competent authority in China.

13. Special Cases

Section 13 outlines special cases, reflecting situations arising in international trade and requiring stricter verification mechanisms. It includes four boxes:

Issued Retroactively: This box is ticked when the Certificate of Origin (CO) is issued more than three days after the ship sails. The three-day period is calculated from the date the CO was issued.

Exhibition: When goods are sent from an ACFTA country to another party for exhibition and sold during or after the exhibition, according to Rule 22 of Annex A of the ACFTA Rules of Origin, the Exhibition box must be ticked, and the name and address of the exhibitor must be recorded in box 2: Product consigned from (Exporter’s business name, address, country).

Third-Party Invoicing: This is a common case where a trade transaction involves an intermediary company issuing an invoice, while the goods still originate from the original exporting country.

Movement Certificate – Back-to-back CO: For goods with a back-to-back CO, the value of the goods in Box 9 must be the export invoice value to the intermediary party and is mandatory when applying the RVC criteria; the name of the original issuing authority of that party, the date of issuance in day/month/year format, and the original CO Form E are recorded in Box 7.

With the above C/O ticked "Issued Retroactively," it means the C/O was issued retroactively, i.e., the goods were already exported before the C/O was issued. In this case, preferential tax treatment may still be enjoyed, but customs usually conducts a more thorough inspection.

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